

have indicated that this case is an unlimited civil matter.

This case will be reclassified as unlimited civil.

Parties are to pay proper filing fees, after which the Court Clerk's Office will assign the matter to the unlimited civil department.

14. 9:00 AM CASE NUMBER: L26-01450
CASE NAME: BANK OF AMERICA N.A. VS. AMY NILSON
***HEARING ON MOTION IN RE: TO DISMISS COMPLAINT**
FILED BY: NILSON , AMY

TENTATIVE RULING:

Defendant filed a Demurrer to the Complaint, on 6/2/26, arguing, under Section 430.10(e) of the CCP, that the Complaint fails to state a cause of action because the debt at issue has been "charged off" by the Plaintiff.

The Demurrer is unopposed and there is proof of mail service of the Demurrer to Plaintiff.

The proof of service of summons in this case, filed on 3/19/26, reflects substitute service on 3/18/26.

Background

Defendant provides evidence of credit reports reflecting that Plaintiff purportedly "charged off" the debt at issue in this matter.

The Defendant argues that this shows the debt no longer exists and, as a result, there is no longer a claim against her.

Analysis

First, the deadline for a defendant to file a demurrer is 30 days from the receipt of the summons. (CCP 430.40). Defendant is well past that deadline with her demurrer.

Second, even assuming, arguendo, that her demurrer is timely, Defendant provides no authority for her claim. That her debt may have been "charged off" does not imply the debt no longer exists. She provides no evidence to support this other than a purported from the website of a credit reporting company and her own conjecture.

Disposition

Defendant's Demurrer is overruled.

Court to file the Order.

15. 9:00 AM CASE NUMBER: N26-1199
CASE NAME: TODD TEMPLETON VS. CALIFORNIA DEPARTMENT OF MOTOR VEHICLES
HEARING IN RE: PETITION FOR WRIT OF MANDATE